THE REPUBLIC OF CORTESIA DEL MAR
COMMON COURT

EX PARTE

YODABIRD19

CASE DETAILS

CASE NUMBER: 1

COURT: IceCarim CJ

DATE: 14 June 2023 (GMT)

JUDGMENT

JUDGMENT OF THE COURT: IceCarim AJ, paras [1] – [21]

CHIEF JUSTICE ICECARIM delivered the judgment of the Court.

I. Introduction

[1] Did the drafters of the Constitution[1] leave out crucial provisions in Sections 113 and 125 of the document? Can this court decide that they did? And if so, what is its power to correct the mistake of the drafters? These are the questions that fall for determination in this case.

II. The problem

[2] If you asked any well-informed citizen of Cortesia after the advent of the Constitution how elections for Presidents, Judges, and Chief Prosecutors would unfold, the answer you would get—nary a bat of an eye—might look something like this: Every four months, those offices are put to a vote. Those who are voted in, consistent with the procedure set out in the Constitution, are entitled to take up office after the election.

[3] Implicit in this understanding is that those who held office and do not run for re-election, or lose in the next election, will vacate office at the close of that election.

[4] Yet the text of the Constitution does not lend its enthusiastic support to such an uncontroversial understanding. Here's what it says, in pertinent part:

> "113. Loss of judicial office
>
> (1) A person loses office as a judge upon—
>
> (a) ceasing to be eligible for judicial office;
>
> (b) resigning from office;
>
> (c) being removed in terms of Section 115; or
>
> (d) being absent from the Republic for 14 days without providing any notice thereof.
>
> …

[1] Constitution of the Republic of Cortesia Del Mar, 2022.

125. Loss of office as a prosecutor

(1) A person loses office as a Chief Prosecutor upon—

(a) ceasing to be eligible for the office;

(b) resigning from office;

(c) being removed in terms of Section 127; or

(d) being absent from the Republic for 14 days without providing any notice thereof."

[5] Contrast these Sections to what Section 91 says:

"91. Loss of membership in the Cabinet

(1) A person loses office as President or Vice President upon—

(a) ceasing to be eligible for that office;

(b) losing membership in the National Forum;

(c) resigning from that office;

(d) being subject to an expression of a lack of confidence by the citizenry or the National Forum;

(e) being impeached; or

(f) *being replaced by virtue of the next person elected as President or Vice President assuming office after an election was called in terms of Section 85.*" (Emphasis added.)

[6] What inference is to be drawn from the fact that sections 113 and 125 omit to mention that a Judge or Chief Prosecutor loses office once they are replaced? The President thinks that "these facts, taken together, if read strictly textually, would seem to indicate that the function of judicial and chief prosecutor elections is to pile more and more elected judges and chief prosecutors into their respective offices without removing the senescent ones."

[7] Add one more complicating factor to the mix. Section 69, providing for loss of membership in the National Forum, also omits replacement as a way to lose membership. And that must have been intended, since the National Forum is

an institution whose elections are designed to "pile more and more elected" Members to it.

III. Interpretation

[8] We cannot lightly presume that there may be drafting errors in the Constitution. It is true that a CivMC constitution is likely to contain more errors than one in the real world. Icenia's constitution notably said "[c]onstitutional amendments must *garnish* a majority support in the Grand Council and the approval of the President of Icenia" (emphasis added). Lambat's constitution on CivClassic went through numerous revisions to correct drafting errors. And it is most probable that less discerning drafters abound; the two nations just cited took their legal linguistics seriously compared to most.

[9] But a general presumption about CivMC constitutions is wholly inapposite. We must consider Cortesia's constitution in its own context. And I do not think much doubt exists that it was a carefully considered document. For that reason, we must be very reticent to assume its drafters erred in wording it.

[10] Before we try to do anything novel, let's give the constitution its plain reading and see if we can't resolve the present problem.

[11] Section 105(1) stipulates the composition of the Supreme Court. It says: "The Supreme Court is the highest court in the Republic. It consists of three judges." Section 106(3) then instructs that the Common Court shall consist of one judge. There is no distinction between a judge of the Common Court and a judge of the Supreme Court; the Constitution contemplates that judges throughout their term serve on the Supreme Court and, on an *ad hoc* basis, serve on the Common Court when called upon to do so.

[12] That is straightforward enough. Now consider the election clauses. Section 112(1) envisages that "an election for three judges must commence on the third Saturday of January, May, and September each year." Only one possible interpretation emerges that does not have the Constitution contradicting itself. At any given time, Cortesia ordinarily should have three judges. And if an election for three judges takes place, it would run counter to that

understanding if newly elected judges are expected to serve alongside their colleagues instated by past elections.

[13] It is regrettable that Section 113(1) fails to make explicit that newly elected judges should replace the outgoing slate. But nonetheless, the only reasonable interpretation of the Constitution, read as a whole, is that there cannot be more than three judges at any given time. For that understanding to take effect, incumbent judges must lose office if they are replaced in an election.

[14] This interpretation is mandated by the Constitution in Section 176(1), which says: "The provisions of this Constitution must be interpreted harmoniously. Each provision must be considered in the light of the whole text of the Constitution, and interpretations that render any provision to be inconsistent with another must be avoided."

[15] By parity of reasoning, a similar interpretation must be given in the context of elections for a Chief Prosecutor. Throughout the Constitution, the Chief Prosecutor is referred to by a definite article. Moreover, Section 119(1)(b) provides that an Acting Chief Prosecutor must be appointed when "the Chief Prosecutor has been absent from the Republic for more than 72 hours and the National Forum decides to appoint an Acting Chief Prosecutor." This all goes to the show that the Constitution contemplates there being one Chief Prosecutor at any given time.

[16] Our reading of the corresponding election clauses must give effect to that contemplation. It can only do that if we construe the election clauses to mean that the Chief Prosecutor loses office once their replacement is elected.

[17] And that is why we must reject the interpretation that "the function of judicial and chief prosecutor elections is to pile more and more elected judges and chief prosecutors into their respective offices". While the omissions in Sections 113 and 125 do avail themselves to such a textual construction, this reading does not emerge as the most reasonable one on a plain reading of the Constitution, and it would pit provisions of the Constitution irreconcilably against one another.

[18] Finally, we can blissfully ignore the analogous provisions relating to the National Forum, because the Constitution sets no limit on the membership of

that institution. Moreover, elections to the National Forum do not follow a regular cycle, which suggests that Members of the Forum are not meant to be replaced in regular elections. Ergo, those provisions are distinguishable from Sections 113 and 125.

[19] Happily, then, we do not need to delve into any more interpretive canons. The gnarly hodgepodge, and the gnashing debate, that textualism, originalism, teleology, and their relatives bring do not need to seize us. The growth of that jungle waits for another day.

IV. Conclusion

[20] We hold that the common understanding of the Constitution—namely that Judges and Chief Prosecutors lose office when they are replaced in an election—is also the correct legal understanding of the Constitution. And we now make an order to that effect.

V. Order

[21] It is declared that Judges and Chief Prosecutors lose office when they are replaced in an election.